

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Adler	Team: Squad #01	CCRB Case #: 202103045	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 06/10/2020 11:58 PM, Thursday, 06/11/2020 12:15 AM, Thursday, 06/11/2020 4:15 AM	Location of Incident: 9th St. and 34th Ave.; 114th Precinct stationhouse; § 87(2)(b) [REDACTED]	18 Mo. SOL 5/4/2022	Precinct: 114
Date/Time CV Reported Wed, 05/19/2021 2:07 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/19/2021 2:07 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. CPT Christopher Giambrone	00000	922412	PSA 9
3. POM Oldson Ajesulas	13641	942931	PSA 9
4. POM Gregory Madocks	24631	954085	PSA 9
5. POM Nicholas Loccisano	16251	960816	PBQN
6. SGT John Hansen	02200	943348	PBQN
7. POM Christopher Singh	01593	961288	PSA 9
8. POM Eric Zeplin	07637	961473	PSA 9
9. SGT Pete Massa	02193	904471	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Adam Sileo	03577	957165	PSA 9
2. POM Sebastian Ramos	20200	959117	PSA 9
3. POM Christopher Oppedisano	15457	964789	PSA 9
4. POF Zarabia Evans	22545	952716	PSA 9
5. POM Brian Magas	03523	953036	PSA 9
6. POM Daniel Frasca	23279	952749	PSA 9
7. POM Ryan McKenna	21048	958908	PSA 9
8. SGT Arthur Riccio	03161	953310	PSA 9
9. POM Joseph Esposito	31881	936555	114 PCT
10. SGT Colin Dyer	02116	943203	114 PCT
11. POM Keith Lang	23218	957757	114 PCT
12. POM Vincent Lahara	07861	956819	114 PCT
13. POM Keith Matthes	30539	932979	114 PCT
14. SGT Hemchandra Kuar	02735	944713	PSA 9
15. POM William Sullivan	01525	960012	PSA 9
16. LT Jason Jansky	00000	936807	PSA 9
17. PO Michael Alpers	18406	958234	PSA 9

Officer(s)	Allegation	Investigator Recommendation
A . CPT Christopher Giambrone	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Captain Christopher Giambrone pointed his gun at § 87(2)(b)	A . Exonerated
B . POM Christopher Singh	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Christopher Singh pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Oldson Ajesulas	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Oldson Ajesulas pointed his gun at § 87(2)(b)	C . Exonerated
D . POM Nicholas Loccisano	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Nicholas Loccisano pointed his gun at § 87(2)(b)	D . Exonerated
E . POM Eric Zeplin	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Eric Zeplin pointed his gun at § 87(2)(b)	E . Miscellaneous - Subject Resigned
F . POM Oldson Ajesulas	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Oldson Ajesulas pointed his gun at § 87(2)(b)	F . Exonerated
G . POM Christopher Singh	Abuse: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Christopher Singh damaged § 87(2)(b)'s property.	G . Unfounded
H . SGT John Hansen	Abuse: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Sergeant John Hansen damaged § 87(2)(b)'s property.	H . Exonerated
I . CPT Christopher Giambrone	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Captain Christopher Giambrone used physical force against § 87(2)(b)	I . Exonerated
J . POM Christopher Singh	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Christopher Singh used physical force against § 87(2)(b)	J . Exonerated
K . Officers	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, officers used physical force against § 87(2)(b)	K . Exonerated
L . CPT Christopher Giambrone	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Captain Christopher Giambrone used a chokehold against § 87(2)(b)	L . Unsubstantiated
M . CPT Christopher Giambrone	Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Captain Christopher Giambrone restricted § 87(2)(b)'s breathing.	M . Unsubstantiated
N . POM Oldson Ajesulas	Abuse: On June 11, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Oldson Ajesulas failed to provide § 87(2)(b) with a business card.	N . Unfounded
O . POM Gregory Madocks	Abuse: On June 11, 2020, on route to the 114th Precinct stationhouse, Police Officer Gregory Madocks failed to provide § 87(2)(b) with a business card.	O . Substantiated
P . POM Oldson Ajesulas	Abuse: On June 11, 2020, at the 114th Precinct stationhouse, Police Officer Oldson Ajesulas failed to provide § 87(2)(b) with a business card.	P . Substantiated
Q . CPT Christopher Giambrone	Abuse: On June 11, 2020, at the 114th Precinct stationhouse, Captain Christopher Giambrone failed to provide § 87(2)(b) with a business card.	Q . Substantiated
R . POM Christopher Singh	Abuse: On June 11, 2020, at the 114th Precinct stationhouse, Police Officer Christopher Singh failed to provide § 87(2)(b) with a business card.	R . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
S . SGT Pete Massa	Abuse: On June 11, 2020, at the 114th Precinct stationhouse, Sergeant Pete Massa failed to provide § 87(2)(b) with a business card.	S . Miscellaneous - Subject Retired
T . POM Gregory Madocks	Abuse: On June 11, 2020, at § 87(2)(b) in Queens, Police Officer Gregory Madocks sexually humiliated § 87(2)(b)	T . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 19, 2021, § 87(2)(b) filed this complaint over the phone with the CCRB on behalf of herself and her friend § 87(2)(b).

On June 10, 2020, at approximately 11:58 P.M., at 9th Street and 34th Avenue in Queens, Capt. Christopher Giambrone, PO Christopher Singh, PO Oldson Ajesulas (promoted to detective after the incident date) of Police Service Area (PSA) 9, PO Nicholas Loccisano of Patrol Borough Queens North, and PO Eric Zeplin of PSA 9, pointed their firearms at § 87(2)(b) who was in the driver's seat of her stopped vehicle (**Allegations A, B, C, D: Exonerated and Allegation E, Force: Miscellaneous – Subject Resigned**). PO Ajesulas then pointed his firearm at § 87(2)(b) who was in the front passenger seat (**Allegation F, Force: Exonerated**). PO Singh broke the front driver's side window (**Allegation G, Abuse of Authority: Unfounded**). Sgt. John Hansen of Police Borough Queens North broke the front passenger's side window (**Allegation H, Abuse of Authority: Exonerated**). Capt. Giambrone, PO Singh, and unidentified officers pulled § 87(2)(b) by her arms, wrist, and shoulders (**Allegations I, J, and K, Force: Exonerated**). Capt. Giambrone pressed on § 87(2)(b)'s neck, restricting her ability to breathe (**Allegations L and M, Force: Unsubstantiated**). On scene, PO Ajesulas failed to provide § 87(2)(b) with a business card (**Allegation N, Abuse of Authority: Unfounded**). On route to the 114th Precinct stationhouse, PO Gregory Madocks of PSA 9 failed to provide a business card to § 87(2)(b) (**Allegation O, Abuse of Authority: Substantiated**). At the 114th Precinct stationhouse, PO Ajesulas, Capt. Giambrone, PO Singh, and Sgt. Pete Massa of the 114th Precinct failed to provide § 87(2)(b) with business cards (**Allegations P and Q, Abuse of Authority: Substantiated, Allegation R, Abuse of Authority: Unsubstantiated, and Allegation S, Abuse of Authority: Miscellaneous – Subject Retired**). At § 87(2)(b) in Queens, PO Madocks watched while a nurse undressed § 87(2)(b) and inserted a catheter (**Allegations T, Abuse of Authority: § 87(2)(g)**).

PO Adam Sileo of PSA 9 arrested § 87(2)(b) under arrest report § 87(2)(a) 160.50 and § 87(2)(b) under arrest report § 87(2)(a) 160.50 in relation to this incident (**01-02 Board Review**).

The investigation obtained body-worn camera (BWC) videos from Capt. Giambrone, PO Singh, PO Loccisano, PO Ajesulas, PO Zeplin, Sgt. Hansen, PO Sileo, and PO Madocks; PO Zarabia Evans, PO Daniel Frasca, Sgt. Hemchandra Kuar, PO Brian Magas, PO Ryan McKenna, PO Christopher Oppedisano, PO Sebastian Ramos, Sgt. Arthur Riccio, and PO William Sullivan of PSA 9; and Sgt. Colin Dyer, PO Joseph Esposito, PO Vincent Lahara, PO Keith Lang, and PO Keith Matthes of the 114th Precinct (**03-30 Board Review**).

Findings and Recommendations

Allegation (A) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Captain Christopher Giambrone pointed his gun at § 87(2)(b)

Allegation (B) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Christopher Singh pointed his gun at § 87(2)(b)

Allegation (C) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Oldson Ajesulas pointed his gun at § 87(2)(b)

Allegation (D) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Nicholas Loccisano pointed his gun at § 87(2)(b)

Allegation (E) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Eric Zeplin pointed his gun at § 87(2)(b)

Allegation (F) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Oldson Ajesulas pointed his gun at § 87(2)(b)

Allegation (G) Abuse of Authority: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Christopher Singh damaged § 87(2)(b)'s property.

Allegation (H) Abuse of Authority: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Sergeant John Hansen damaged § 87(2)(b)'s property.

It is undisputed that on June 10, 2020, at approximately 11:58 P.M., § 87(2)(b) was driving a white Lexus SUV with § 87(2)(b) as her passenger. The vehicle had tinted windows and no license plate. After § 87(2)(b) turned right at a traffic light, Capt. Giambrone, who was driving behind her, activated his vehicle's lights and sirens. § 87(2)(b) continued driving, stopping only when police vehicles surrounded her vehicle and prevented it from moving. Multiple officers surrounded § 87(2)(b)'s vehicle and instructed § 87(2)(b) and § 87(2)(b) to exit the vehicle. Initially, neither civilian exited the vehicle. Capt. Giambrone, PO Singh, PO Loccisano, PO Zeplin, and PO Ajesulas pointed their firearms at the vehicle. While § 87(2)(b) and § 87(2)(b) were still in the vehicle, Sgt. Hansen broke the front passenger's side window.

§ 87(2)(b) testified that the side and back windows of her vehicle were tinted to 10% and the front windshield was tinted to 35% (**31-32 Board Review**). When asked if the tints were legal in New York, § 87(2)(b) stated that her vehicle was not registered in any state so she was not obligated to follow specific state requirements. Additionally, she noted that her driver's license is from Pennsylvania, which had no regulations regarding window tints. § 87(2)(b) previously had a New York State driver's license that New York was not allowing her to remove from the system. This caused problems in New York where officers told her she did not have privileges to drive in the state. § 87(2)(b) first observed a blue Ford Focus with tinted windows following her approximately three miles before she made a right turn at a yellow light. Once she made this turn, the Ford Focus activated its lights and sirens. § 87(2)(b) then made her first left and "zigzagged" across several blocks. As she drove, two unmarked vehicles kept trying to pass her and § 87(2)(b) blocked one of them from doing so. When the blue Ford Focus successfully drove by, § 87(2)(b) braked to allow it to get in front of her and it pulled diagonally in front of her vehicle. This boxed in § 87(2)(b)'s vehicle and she stopped driving. Another unmarked police vehicle was behind § 87(2)(b)'s vehicle, two marked vehicles were behind that, and two additional marked vehicles were parked on the sidewalk. § 87(2)(b) did not know the street name of the location where she was stopped but believed it was approximately one mile away from where she had made the right on yellow. § 87(2)(b) did not pull over when the police vehicle activated its lights and sirens because she was not "driving" but rather "travelling." When asked to explain the difference between the two, § 87(2)(b) stated that she was travelling rather than driving because her vehicle did not have a license plate and it is "your natural born right to be in a car that you own and move to get from Point A to Point B freely." Once § 87(2)(b) stopped her vehicle, approximately 16 to 20 officers exited their vehicles simultaneously and surrounded hers. PO Ajesulas stood directly in front of her windshield, drew his gun, and pointed it at § 87(2)(b) who looked down at her phone, trying unsuccessfully to start a video recording. § 87(2)(b) was not scared of PO Ajesulas because she did not believe that he would shoot with so many people present. PO Ajesulas then turned his gun and pointed it at § 87(2)(b). Officers instructed § 87(2)(b) to exit the vehicle. Though her windows were closed, she could hear them well. § 87(2)(b) then began to lower her driver's side window. When it was approximately halfway down, PO Singh tried unsuccessfully to smash it using an unknown silver object. He then tried again with the same object and was successful.

§ 87(2)(b) testified that the police vehicle activated its lights and sirens after § 87(2)(b) made a right at a traffic light (**33 Board Review**). § 87(2)(b) did not recall the color of traffic light when § 87(2)(b)

§ 87(2)(b) made the turn. In addition to activating the lights and sirens, an officer spoke over a loudspeaker although § 87(2)(b) did not know what they were saying or if § 87(2)(b) heard them. Immediately after the sirens were activated, an unmarked black four-door Ford sedan pulled in front of § 87(2)(b)'s vehicle from her left and drove to the right, cutting her off. Four officers then exited the police vehicle and drew their guns. PO Ajesulas stood in front of § 87(2)(b)'s vehicle on the passenger's side and pointed his firearm at § 87(2)(b). Without using a loudspeaker, the officers told § 87(2)(b) to turn off her vehicle and told both individuals to exit the vehicle. § 87(2)(b) did not feel comfortable making any sudden movements because of the guns pointed at him. He did not exit the vehicle because he was worried an officer might misinterpret his movements and shoot. § 87(2)(b) put his hands up because he did not want officers to think he was making any sudden movements. § 87(2)(b) was not paying attention to what § 87(2)(b) was doing at the time. While the officers were standing in front of the vehicle, they asked why § 87(2)(b) had not stopped. § 87(2)(b) did not know what they were referencing when they said this. Sgt. Hansen then approached § 87(2)(b)'s door and hit the closed front passenger window twice with an object that looked like a slim metal pole, shattering it. An officer then escorted § 87(2)(b) out of the vehicle, during which time PO Ajesulas continued to point his firearm at § 87(2)(b). Officers handcuffed § 87(2)(b) while other officers still had their guns drawn. § 87(2)(b) told the officers that it was unwarranted for them to have their guns drawn and the officers put the guns away.

At 00:23 in Capt. Giambrone's BWC, after driving slowly for several blocks, Capt. Giambrone parks his vehicle **(03 Board Review)**. At 00:29, as Capt. Giambrone exits his vehicle, § 87(2)(b)'s vehicle is stopped approximately one foot in front of his and does not appear to be moving. Capt. Giambrone draws his firearm and points it toward § 87(2)(b)'s vehicle, while approaching it from the rear driver's side. The windows of her vehicle are sufficiently tinted that one cannot see inside from one to two feet away. At 00:34, PO Singh bangs on § 87(2)(b)'s closed front driver's side window three times with a baton. At 00:39, § 87(2)(b) lowers the unbroken window and Capt. Giambrone puts his firearm away. Neither PO Singh nor any other officer on the driver's side of the vehicle hits that window with a tool again. There is no audio in this portion of the footage.

At 00:34 in PO Singh's first BWC, he exits a police vehicle and approaches § 87(2)(b)'s vehicle on the front driver's side, while pointing a firearm at the driver's door **(04 Board Review)**. After two seconds, PO Singh puts his gun away and hits the driver's window with a baton.

At 00:02 in PO Frasca's BWC, PO Ajesulas is standing at the front of § 87(2)(b)'s vehicle and pointing his firearm at the front windshield **(16 Board Review)**.

At 00:48 in PO Loccisano's BWC, PO Loccisano exits his vehicle, approaches § 87(2)(b)'s vehicle on the front driver's side, and points his firearm toward it for approximately 10 seconds until PO Singh approaches § 87(2)(b)'s window **(06 Board Review)**.

At 00:19 in PO Zeplin's first BWC, PO Zeplin points his firearm toward the driver's side of § 87(2)(b)'s vehicle for approximately two seconds **(09 Board Review)**.

At 00:45 in Sgt. Hansen's BWC, Sgt. Hansen approaches the passenger's side of § 87(2)(b)'s vehicle **(11 Board Review)**. The window is unbroken and tinted so that it is not possible to see through it. Sgt. Hansen first reaches out and grabs the door handle. He then hits the door several times with his palm. Sgt. Hansen then pulls out a baton and hits it against the window. Immediately thereafter, a triangular shard of glass is visible on the lower half of the window, making clear that the glass is broken. After the glass breaks, § 87(2)(b) is visible inside with his hands up. At 01:02, PO Ajesulas is standing in front of § 87(2)(b)'s vehicle and is no longer pointing his firearm.

At 00:02 in the radio messages for NYPD Event #D2006102750, Capt. Giambrone states that he is following a vehicle northbound on 11th Street in the direction of 35th Avenue for a vehicle stop **(34 Board Review)**. At 00:38, he states that there is no plate on the vehicle, which is a white Lexis SUV. At 01:05, he states that the vehicle made a left on 34th and is headed toward 10th Street. At 01:25, he states that the vehicle is at 9th Street.

According to arrest report § 87(2)(a) 160.50 PO Sileo arrested § 87(2)(b) for § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b) (01 Board Review). The report narrative states that § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
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§ 87(2)(b)
§ 87(2)(b)

Arrest report § 87(2)(a) 160.50 for § 87(2)(b) is sealed and § 87(2)(b) did not provide the investigation with a signed unsealing order **(02 Board Review)**.

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
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§ 87(2)(b)
§ 87(2)(b)

Capt. Giambrone testified that he was driving south on 21st Street and approaching 40th Avenue when he observed § 87(2)(b)'s vehicle turn right at a red light **(36 Board Review)**. To Capt. Giambrone, the fact that the vehicle did not have a license plate signified that she might be trying to evade traffic enforcement from red light or speeding cameras and might easily flee from officers. He noted that a recent shooting on the same block involved a vehicle without a license plate that fled the scene. § 87(2)(b) did not pull over after Capt. Giambrone activated his lights and sirens, driving five long blocks north and five short blocks west. In Capt. Giambrone's experience, vehicles that do not stop for officers generally have something to hide, possibly a weapon. This made him fear for his safety. He did not recall if § 87(2)(b) committed any additional vehicle traffic law violations while he followed her. At 34th Avenue and 9th Street, another unmarked vehicle drove up from the east and pulled in front of § 87(2)(b)'s vehicle, blocking its forward mobility. § 87(2)(b) then backed up toward Capt. Giambrone's vehicle, almost ramming it. § 87(2)(b) then drove forward and backed up again. This caused Capt. Giambrone to fear that she would ram his vehicle. A third unmarked vehicle drove up alongside § 87(2)(b)'s front driver's side bumper, preventing it from moving. At this point, her vehicle was blocked in on three sides and moved back again but had nowhere else to go. The fact that § 87(2)(b) repeatedly tried to back up into his vehicle also caused Capt. Giambrone to fear that she might try to run him over. He then exited his vehicle, pointed his firearm at § 87(2)(b)'s vehicle, approached its driver's door from behind and issued commands including, "Get out of the car," and "Show me your hands." Capt. Giambrone pointed his firearm because of all the factors that made him fear for his safety: the lack of a license plate and refusal to stop that together indicated she might have a weapon, the recent shootings on the

block, and the fact that she had almost rammed his vehicle. He did not issue commands to other officers, several of whom were also pointing their firearms at § 87(2)(b)'s vehicle. Capt. Giambrone did not recall when he holstered his firearm. When he approached the driver's side window, it was closed but Capt. Giambrone could see § 87(2)(b) within seconds of walking up to her window. He did not recognize her and did not recall any other officers telling him that they recognized her. When he first saw § 87(2)(b) she was moving her hands all over, up and down. He did not independently recall seeing anything in her hands but noted that when he reviewed his BWC prior to the interview, it looked like she was holding a cell phone. § 87(2)(b)'s movements increased Capt. Giambrone's fear because he did not know what she might be grabbing while making these movements. PO Singh then used his baton to shatter the front driver's side window. Capt. Giambrone did not recall any officers breaking any other parts of the vehicle. Capt. Giambrone believed that it was necessary to break the window since § 87(2)(b)'s previous actions indicated that she might grab a gun and open fire. As such, it was crucial that officers could reach § 87(2)(b) before she had a chance to shoot.

PO Singh testified that he arrived on scene at the same time as three other police vehicles **(37 Board Review)**. § 87(2)(b) was still driving so PO Singh pulled his vehicle up along her passenger's side, while another police vehicle pulled in front of it, and a third police vehicle pulled behind it to stop it from moving. He then exited his vehicle, unholstered his firearm, and pointed it at § 87(2)(b)'s vehicle. He pointed his gun because § 87(2)(b) had refused to stop for police and, in his experience, drivers who fail to stop for police typically are fleeing the police, have a warrant out for their arrest, or have something to hide, such as weapons. As such, pointing his gun was a precaution against the vehicle's occupants shooting at him and his fellow officers. PO Singh did not recall Capt. Giambrone issuing orders to other officers. As PO Singh approached § 87(2)(b)'s driver's side with his gun drawn, he saw § 87(2)(b) and § 87(2)(b) "moving around a lot" inside. He could not see their hands. It was nighttime so the visibility was low. PO Singh and his fellow officers issued several commands to the occupants such as, "Let me see your hands," "Open the door," and "Roll down the window." The occupants refused to exit the vehicle or roll down their window. Since the civilians were still not responding to the officers' orders, PO Singh continued to fear for his and other officers' safety as the occupants might be armed. He therefore approached § 87(2)(b)'s window and hit it with an extendable asp in an attempt to break it but was unsuccessful. After this, § 87(2)(b) rolled the window down.

PO Ajesulas stated that when he arrived on scene, neither § 87(2)(b) nor § 87(2)(b) was complying with officers' orders to turn off the vehicle, open the door, step out, or show their hands **(38 Board Review)**. PO Ajesulas did not know why officers had pulled the vehicle over. When he approached § 87(2)(b)'s vehicle from the front, PO Ajesulas could not see either civilians' hands or what they were doing. He drew his firearm as a precaution because the occupants were not listening to officers' directives and so he feared they had a firearm. He did not independently recall if he pointed the firearm in a specific direction. PO Ajesulas did not recall how § 87(2)(b) exited the vehicle, but once he saw that § 87(2)(b) was outside, he approached the passenger side of the vehicle and told § 87(2)(b) to put his hands behind his back. Another officer, whose identity he did not recall, handcuffed § 87(2)(b). PO Ajesulas did not see any officer break windows on the vehicle. After watching PO Sileo's BWC footage from 00:40 to 01:10, PO Ajesulas acknowledged pointing his firearm at the vehicle. He did so because he considered § 87(2)(b) and § 87(2)(b) a threat since they had refused to stop the vehicle and then refused to exit it.

A New York State DMV database search revealed that § 87(2)(b)'s license was revoked as of April 15, 2020, for an uninsured accident **(39 Board Review)**.

According to New York Vehicle and Traffic Law §1102, "no person shall fail or refuse to comply

with any lawful order or direction of any police officer,” **(40 Board Review)**.

According to New York State Penal Law §195.05, people are guilty of obstructing governmental administration when they intentionally obstruct, impair, prevent, or attempt to prevent a public servant from performing an official function by using intimidation, physical force, interference, or any unlawful act **(41 Board Review)**.

According to *People v. Livigni*, 88 A.D.2d 286, officers may draw and point their firearms during a vehicle stop as a precautionary measure and safety response **(42 Board Review)**.

In *People v. Senkitael*, 32 Misc. 3d 1237(A), an officer broke a civilian’s window during a car stop when the civilian did not respond to repeated directives to lower his window **(43 Board Review)**. The court found that this officer’s actions were legal because the civilian was guilty of obstructing governmental administration by refusing to stop for police lights and sirens for three blocks, and once stopped, refusing to comply with the officer’s requests to open his window.

According to *Onderdonk v. State*, 170 Misc.2d 155, officers are authorized to damage property if doing so is reasonably necessary to perform their duties **(44 Board Review)**.

According to NYPD Patrol Guide Procedure 221-01, officers may use force “when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody,” **(45 Board Review)**. An officer’s “decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present.” When an officer “determines that the potential for serious physical injury is no longer present,” they should holster the firearm “as soon as practicable.”

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C, D, and F** be closed as **exonerated**.

According to CTS, PO Zeplin’s last active date was April 1, 2021. In a phone call with the NYPD’s employee verification unit on March 14, 2022, SPA Camp confirmed that PO Zeplin resigned in April 2021 **(71 Board Review)**. It is therefore recommended that **Allegation E** be closed as **Miscellaneous – Subject Resigned**.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as

unfounded.

§ 87(2)(g)

It is therefore recommended that Allegation H be closed as exonerated.

Allegation (I) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Captain Christopher Giambrone used physical force against § 87(2)(b)

Allegation (J) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Christopher Singh used physical force against § 87(2)(b)

Allegation (K) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, officers used physical force against § 87(2)(b)

Allegation (L) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Captain Christopher Giambrone used a chokehold against § 87(2)(b)

Allegation (M) Force: On June 10, 2020, at 9th Street and 34th Avenue in Queens, Captain Christopher Giambrone restricted § 87(2)(b)'s breathing.

It is undisputed that after the windows of § 87(2)(b)'s vehicle were rolled down or broken, § 87(2)(b) stepped out of the vehicle, while § 87(2)(b) remained seated inside with her seatbelt fastened.

§ 87(2)(b) testified that officers told her to exit the vehicle but she did not do so (**31-32 Board Review**). § 87(2)(b) exited the vehicle. While she was seated, Capt. Giambrone told officers to open her door and pull her out. § 87(2)(b) was still wearing her seatbelt when five officers, including Capt. Giambrone and PO Singh, pulled her in different directions. Capt. Giambrone was standing to her left, grabbing her left wrist. PO Singh was also to her left and pulled her left arm and shoulder. Two other male officers were also standing to her left; one pulled hard on her left arm and shoulder, while the second pulled on her left arm. § 87(2)(b) was unable to describe these officers. A white female officer was inside the passenger's seat, pulling on § 87(2)(b)'s right arm with significantly less pressure than the male officers. Meanwhile, another male officer who was directly behind § 87(2)(b) looped his left arm around her headrest and touched her chin and applied a lot of pressure to her neck with his arm. This affected § 87(2)(b)'s ability to speak; she could not get out every word she wanted to say. It also somewhat restricted her ability to breathe; she was only able to breathe shallow breaths through her nose. The officers continue to pull § 87(2)(b) for approximately 10 minutes, during which time none of the officers stated anything. § 87(2)(b) was not doing anything and was repeatedly stating, "Get off of me. Why are you touching me?" After approximately 10 minutes, the officers stopped pulling and noted that it was difficult to remove § 87(2)(b) from the vehicle. The white female officer then stated that § 87(2)(b)'s seatbelt had been on the whole time and unbuckled it. Once her seatbelt was removed, § 87(2)(b) stepped out of the vehicle on her own. Officers then handcuffed § 87(2)(b). Later, when officers placed § 87(2)(b) into the backseat of a police vehicle, an officer stated, "Hey, stop playing. Stop trying to bite me." § 87(2)(b) was not trying to bite the officer.

§ 87(2)(b) testified that while he was standing outside § 87(2)(b)'s vehicle, he looked inside and saw that Capt. Giambrone had both his hands around § 87(2)(b)'s neck **(33 Board Review)**. It looked to § 87(2)(b) like Capt. Giambrone was trying to pull § 87(2)(b) headfirst out of the vehicle by her neck. § 87(2)(b) was jerking her head back and forth. § 87(2)(b) stated, "Please stop choking her," after which Capt. Giambrone let go of § 87(2)(b)'s neck. § 87(2)(b) did not recall Capt. Giambrone saying anything while he was pulling on § 87(2)(b)'s neck.

At 00:35 in Capt. Giambrone's BWC, while § 87(2)(b) is sitting in the driver's seat, she yells, "Get off of me. Get off of me. This is illegal. Get off of me," **(03 Board Review)**. A white male officer's torso is inside the window. An officer states, "What's illegal is you [inaudible]; you're biting." § 87(2)(b) states, "I'm not even biting you because I'm talking." A male officer states, "Open the door. We gotta go." At 01:20, Capt. Giambrone opens the driver's door wide. § 87(2)(b) states, "I'm not resisting. Get off of me. Get off of me." Capt. Giambrone reaches into the vehicle but it is not clear where he is touching. He tells § 87(2)(b) to get out of the vehicle and she tells him to get off her. Capt. Giambrone's arms and another white male officer's arms are inside the vehicle. It is unclear where they are touching or where § 87(2)(b) is. There is no officer on the passenger's side of § 87(2)(b)'s vehicle and no white female on scene. At 01:39, two officers pull § 87(2)(b) out of the driver's seat and onto the ground.

At 00:38 in PO Singh's first BWC, Capt. Giambrone approaches § 87(2)(b)'s driver's door, pulls on the handle and opens it slightly **(04 Board Review)**. The door immediately closes. He pulls it open a second time and again, it immediately closes. He then pulls at it three additional times and it does not open. At 01:06, PO Singh leans inside the window. Several officers have their hands near § 87(2)(b)'s shoulders but it is not clear from the video which officers are touching where or if they are using force. § 87(2)(b) yells, "Get off me." At 01:11, PO Singh states, "Don't bite me." At 01:13, Capt. Giambrone's right hand reaches behind § 87(2)(b)'s neck and holds the bottom of her chin. His palm is over her neck; it is not clear from the video if he touches or puts pressure on her neck. Capt. Giambrone then turns § 87(2)(b)'s face away from him and toward the passenger seat. At 01:16, § 87(2)(b) states, "Let go of my neck." At 01:31, Capt. Giambrone and PO Singh pull on § 87(2)(b)'s left arm and tell her to get out of the vehicle. She remains seated and yells, "Get off of me." At 01:31, two white male officers in blue uniforms pull § 87(2)(b) out of the vehicle and onto the ground. The officers' faces are blurry and only momentarily visible. At no point does the footage show Capt. Giambrone with both his hands around § 87(2)(b)'s neck.

At 00:19 in PO Magas's BWC, while Capt. Giambrone is reaching into the front driver's seat of § 87(2)(b)'s vehicle, PO Magas opens the driver's side passenger door and enters the backseat **(18 Board Review)**. He reaches downward on the right side of driver's seat in the area of the seatbelt while § 87(2)(b) yells, "Let go of my neck."

Capt. Giambrone testified that officers continued to order § 87(2)(b) to exit her vehicle and she continued to refuse **(36 Board Review)**. Capt. Giambrone then reached his arm inside the driver's window, unlocked the door, and opened it approximately two inches. When he put his arm inside the door, § 87(2)(b) pulled it closed, almost hitting his arm. Capt. Giambrone opened the door for a second time. § 87(2)(b) was wearing her seatbelt at the time and an officer clipped it. Capt. Giambrone then reached for § 87(2)(b)'s left arm and tried to guide her out of the vehicle, using minimal force. However, § 87(2)(b) clenched her arms and body, refused to get out, flailed her arms around, and moved inward into the vehicle. Both Capt. Giambrone and PO Singh then pulled § 87(2)(b)'s arms get her out of the vehicle. However, she stated, "Let me go," and did not get out of the vehicle. PO Singh then stated, "You're trying to bite me." Capt. Giambrone

heard PO Singh make this statement but did not see the alleged attempted bite. He grabbed § 87(2)(b)'s mandible, or chin, and pulled her head back into a position that still allowed for breathing and did not constrict her airway. He did this to prevent § 87(2)(b) from biting PO Singh. Capt. Giambrone did not touch § 87(2)(b)'s neck and did not see any other officer do so. Two other officers, whose identities Capt. Giambrone did not recall, then forcibly pulled § 87(2)(b) from the vehicle, and brought her to the ground. After viewing PO Singh's BWC from 01:10 to 01:24, Capt. Giambrone stated that he did not put any pressure on or touch § 87(2)(b)'s neck and there was no indication she had trouble breathing. He noted that in addition to being a captain in the NYPD, he has also been an EMT for seven years and so is familiar with the indications of a restricted airway. § 87(2)(b) did not exhibit these indications because she was yelling loudly, which is something she would not have been able to do if her breathing was restricted.

PO Magas testified that when he approached § 87(2)(b)'s vehicle, he entered the backseat, and released her seatbelt by pressing the button on the right side of the driver's seat **(46 Board Review)**. He did not put his hand anywhere near § 87(2)(b)'s neck, nor did he restrict her breathing. He did not observe any indications that § 87(2)(b)'s breathing was restricted. He did not see any other officer put their hand near her neck or restrict her breathing. He did not recall § 87(2)(b) doing anything with her body at the time but did recall her screaming. Besides unbuckling § 87(2)(b)'s seatbelt, PO Magas did nothing else while in the backseat. He did not use any force against § 87(2)(b). As soon as he unbuckled § 87(2)(b) PO Magas exited the vehicle. He was only in the backseat for a few seconds.

PO Singh, PO Ajesulas, PO Oppedisano, and PO Madocks testified that they did not recall seeing any officers touch § 87(2)(b)'s neck in a manner that could have restricted her breathing **(37-38, 47-48 Board Review)**.

A request for a Threat Resistance and Injury Worksheet yielded negative results **(49 Board Review)**.

According to NYPD Patrol Guide Procedure 221-01, officers may use force "when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody," **(45 Board Review)**. To determine if force is reasonable, officers should consider the nature and severity of the circumstances; the civilian's actions; the duration of the action; the "immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders" and whether the civilian is actively resisting custody or attempting to evade arrest by flight, among other factors. Officers are prohibited from using chokeholds, defined as "any pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air."

NYPD Patrol Guide Procedure 221-02 defines "active resisting" as including "physically evasive movements to defeat a member of service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into custody," **(50 Board Review)**. It further states that when an officer "must gain compliance, control or custody of an uncooperative subject, the member should comply with *P.G. 221-01, 'Force Guidelines'* and [...] take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody." If an officer deems that force is necessary, they are to "apply no more than the reasonable force necessary to gain control."

§ 87(2)(b) testified to remaining seated after officers told her to get out of the vehicle, even when § 87(2)(b) exited the vehicle and officers had opened the door and were attempting to remove her by force. Additionally, BWC footage shows that she closed the door twice when Capt. Giambrone attempted to open it and, § 87(2)(g) did not exit the vehicle on her own but remained

seated until unidentified officers pulled her out. § 87(2)(g)

therefore recommended that **Allegations I, J, and K** be closed as **exonerated**.

§ 87(2)(b) testified that an officer in the backseat put pressure on her neck. BWC footage shows that PO Magas was the only officer to enter the backseat at the approximate time that § 87(2)(b) stated, “Let go of my neck.” However, BWC footage also shows that while PO Magas was in the backseat, he reached downward toward § 87(2)(b)’s seatbelt and not upward towards her neck. Furthermore, BWC footage shows that Capt. Giambrone reached from behind § 87(2)(b)’s head and held her chin while his palm was over her neck. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations L** and **M** be closed as **unsubstantiated**.

Allegation (N) Abuse of Authority: On June 11, 2020, at 9th Street and 34th Avenue in Queens, Police Officer Oldson Ajesulas failed to provide § 87(2)(b) with a business card.

Allegation (O) Abuse of Authority: On June 11, 2020, on route to the 114th Precinct stationhouse, Police Officer Gregory Madocks failed to provide § 87(2)(b) with a business card.

Allegation (P) Abuse of Authority: On June 11, 2020, at the 114th Precinct stationhouse, Police Officer Oldson Ajesulas failed to provide § 87(2)(b) with a business card.

Allegation (Q) Abuse of Authority: On June 11, 2020, at the 114th Precinct stationhouse, Captain Christopher Giambrone failed to provide § 87(2)(b) with a business card.

Allegation (R) Abuse of Authority: On June 11, 2020, at the 114th Precinct stationhouse, Police Officer Christopher Singh failed to provide § 87(2)(b) with a business card.

Allegation (S) Abuse of Authority: On June 11, 2020, at the 114th Precinct stationhouse, Sergeant Pete Massa failed to provide § 87(2)(b) with a business card.

§ 87(2)(g)

It is undisputed that PO Oppedisano and PO Madocks transported § 87(2)(b) from the scene to the 114th Precinct stationhouse, with PO Oppedisano driving and PO Madocks sitting in the backseat beside § 87(2)(b).

§ 87(2)(b) testified that while he was handcuffed and officers were walking him toward a marked

SUV, he saw PO Ajesulas and stated, “I want your card [...] I have a right to that information,” **(33 Board Review)**. § 87(2)(b) did not recall PO Ajesulas’s response, but he did not give him his business card. Later, when he was being released, § 87(2)(b) asked the desk officer for his business card. § 87(2)(b) described the desk officer as a white male in his early 40s with a medium build and brown hair. The desk officer did not provide him with a business card and stated, “Man, just get out of here.”

At 03:47 in PO Loccisano’s BWC, Lt. Jason Jansky of PSA 9 and PO Loccisano walk § 87(2)(b) to a marked police vehicle **(33 Board Review)**. During the walk, § 87(2)(b) repeatedly asks why officers are taking him to a vehicle and why he is under arrest, but he does not ask for business cards and PO Ajesulas is not in the vicinity. At 05:58, when PO Loccisano and § 87(2)(b) arrive at the police vehicle, PO Ajesulas approaches and stands beside the vehicle until § 87(2)(b) sits inside and the door closes. During this time, § 87(2)(b) does not ask PO Ajesulas for his business card.

At 04:54 in PO Madocks’s second BWC, § 87(2)(b) is sitting in the back of the police vehicle beside PO Madocks, when he states, “You have a card?” **(14 Board Review)**. PO Madocks states, “I will when we get back to the precinct.”

At 01:20 in PO Ajesulas’s second BWC, § 87(2)(b) is in the cell area of the 114th Precinct with PO Singh and PO Ajesulas **(08 Board Review)**. He faces PO Ajesulas and states, “I want your card.” PO Ajesulas states, “You’re under arrest. My name is going to be on your arrest paperwork.”

At 05:02 in PO Singh’s second BWC, after asking for PO Ajesulas’s card, § 87(2)(b) turns toward Capt. Giambrone, who has entered the room, and states, “Let me ask you a question. How do I get everybody’s cards that was on scene? Right to Know Act,” **(05 Board Review)**. Capt. Giambrone states, “Sure, we’ll get you everyone’s information.” § 87(2)(b) states, “I don’t want their information. I want their cards.” At 11:40, § 87(2)(b) states, “I really would like everybody’s card.” He then points to PO Ajesulas and states, “Especially this guy’s card.” Capt. Giambrone states, “I heard you the first time you asked.” § 87(2)(b) states, “I don’t have anybody’s card.” PO Singh is in the room and standing behind § 87(2)(b) throughout this conversation.

PO Madocks testified that he sat in the backseat beside § 87(2)(b) while he and PO Oppedisano were transporting him to the stationhouse **(48 Board Review)**. During the ride, § 87(2)(b) asked PO Madocks for his business card and PO Madocks told him that he would provide a business card once they arrived at the stationhouse. PO Madocks did not give § 87(2)(b) his business card at the stationhouse because it is not NYPD procedure to give a business card to an arrestee. Specifically, the Patrol Guide states that if someone is under arrest, officers do not provide them with business cards; this procedure exempts officers from giving arrestees a business card even if the arrestee specifically requests one. At the stationhouse, § 87(2)(b) asked a lot of officers for their business cards. PO Madocks did not see any other officer give § 87(2)(b) their business cards.

PO Ajesulas stated that he did not recall having any conversations with § 87(2)(b) on scene or at the stationhouse **(38 Board Review)**. He did not independently recall § 87(2)(b) asking for his business card at the stationhouse. After watching his second BWC from 00:02 to 00:30, PO Ajesulas stated that it did not refresh his recollection of interacting with § 87(2)(b) at the stationhouse. He acknowledged that the footage showed § 87(2)(b) asking him for his business card. He did not recall giving § 87(2)(b) a business card and did not recall if any other officer provided § 87(2)(b) with a business card. He did not know if NYPD procedure obliged him to give § 87(2)(b) a business card in the situation captured in the footage.

Capt. Giambrone testified that he recalled § 87(2)(b) asking him for a business card in the stationhouse **(36 Board Review)**. Capt. Giambrone provided § 87(2)(b) with his name and then he explained that

business card requests do not apply to arrest situations. Capt. Giambrone testified that according to NYPD policy, when an arrestee asks for a business card from an officer, the officer does not need to provide one. For this reason, Capt. Giambrone did not give § 87(2)(b) his business card. He did not see any other officers give § 87(2)(b) their business cards. He did not observe any conversations between § 87(2)(b) and the desk officer.

PO Singh testified that he did not independently recall interacting with § 87(2)(b) at the stationhouse (**37 Board Review**). After watching his second BWC from 05:14 to 05:49, showing § 87(2)(b) in the cell area requesting business cards from all officers who were on scene, PO Singh stated that he still did not recall the interaction. He noted that NYPD policy at the time did not require officers to provide a business card to arrestees since arrest reports contained officer information. However, he did not recall if he provided § 87(2)(b) a business card.

According to New York City Administrative Code § 14-174, while officers are not obligated to offer a business card to individuals who are arrested or issued a summons, they must still offer one if an individual specifically requests their identifying information (**51 Board Review**).

Likewise, NYPD Patrol Guide Procedure 203-09 excludes arrestees and individuals who receive summonses from those to whom officers must offer a business card (**52 Board Review**). However, the procedure also notes that officers are “to provide business cards, as appropriate, at the request of members of the public.”

BWC footage shows § 87(2)(b) s walk to the police vehicle in full and does not show him crossing paths with PO Ajesulas on the way to the vehicle. Footage does show PO Ajesulas approaching the police vehicle once § 87(2)(b) was standing outside of it. However, it shows this period of time in full, as well, and does not capture § 87(2)(b) requesting PO Ajesulas’s business card. It is therefore recommended that **Allegation N** be closed as **unfounded**.

BWC footage shows that § 87(2)(b) directly requested business cards from PO Madocks, PO Ajesulas, and Capt. Giambrone. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations O, P, and Q** be closed as **substantiated**.

While BWC footage shows that PO Singh was in the room when § 87(2)(b) requested business cards from everyone who was on scene, it also shows that § 87(2)(b) was facing away from PO Singh and speaking directly to Capt. Giambrone when he made this request. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation R** be closed as **unsubstantiated**.

According to the 114th Precinct June 10, 2020 Tour 3 Roll Call, the officer assigned to the desk was Sgt. Massa (**68 Board Review**). The precinct was unable to locate the June 11, 2020 Tour 1 Roll Call. However, the Command Log for June 11, 2020 shows that Sgt. Massa was manning the desk

until 5 AM when Sgt. Andrew Chin took over. The command log entry relating to § 87(2)(b)'s arrest states that he was released at 5:40 A.M., a time at which Sgt. Chin was manning the desk. However, while Sgt. Massa's MOS photo shows that as a § 87(2)(b)-old white male with brown hair, he is a partial match for § 87(2)(b)'s description of the desk officer (**69 Board Review**), Sgt. Chin's MOS photo shows that he is a § 87(2)(b)-old Asian male with black hair and so not a match for § 87(2)(b)'s description (**70 Board Review**). § 87(2)(g)

According to CTS, Sgt. Massa's last active date was February 3, 2022. In a phone call with the 114th Precinct on March 8, 2022, PO Vanessa Zambrano-Guerra confirmed that Sgt. Massa had retired (**53 Board Review**). It is therefore recommended that **Allegation S** be closed as **Miscellaneous – Subject Retired**.

Allegation (T) Abuse of Authority: On June 11, 2020, at § 87(2)(b) in Queens, Police Officer Gregory Madocks sexually humiliated § 87(2)(b)

NYPD documentation consistently reports that when § 87(2)(b) arrived at the 114th Precinct stationhouse, she was breathing but unresponsive. PO Madocks accompanied § 87(2)(b) in an ambulance to § 87(2)(b) while PO Oppedisano followed behind in his police vehicle. The two officers remained with § 87(2)(b) until PO Evans and PO Ramos relieved them the following day at approximately 6:40 AM. At approximately 2:50 P.M., PO Evans and PO Ramos transported § 87(2)(b) back to the 114th Precinct stationhouse for arrest processing.

§ 87(2)(b) testified that she was able to see but unable to talk or move while at the hospital (**31-32 Board Review**). She recognized the officer by her bedside as PO Costello, shield #3459, who had accompanied her to the hospital on a previous date. She described this officer as a 6' tall, heavyset white male in his late 20s to mid-30s with dark brown hair, a beard, and glasses. Approximately an hour after § 87(2)(b) arrived at the hospital, a nurse inserted a catheter. The nurse did not properly close the curtain around § 87(2)(b)'s bed and PO Costello was standing in front of the curtain. PO Costello then watched while the nurse undressed § 87(2)(b) from the waist down. After approximately 10 seconds, PO Costello noticed that § 87(2)(b) was looking at him and walked away to a different area where he was blocked by the curtain.

The investigation did not obtain any BWC footage from inside the hospital because BWC recordings are prohibited inside medical facilities.

§ 87(2)(a) PHL § 18(6)

PO Madocks's memo book for the incident date states that his partner was PO Oppedisano (**61 Board Review**). At § 87(2)(b), he escorted EMS to § 87(2)(b) for an "AIDED prisoner." At 6:40 A.M., he was "relieved by PO Ramos and PO Evans" at § 87(2)(b).

CTS shows PO Costello as assigned to the 113th Precinct and his memo book contains no reported activities for the incident date (**55-56 Board Review**). According to his MOS photo, PO Costello is a § 87(2)(b)-old white male, 5'11" tall, 180 pounds with blonde hair, blue eyes, and a moustache and so does not match § 87(2)(b)'s description of the officer who accompanied her to the hospital (**57 Board Review**). PO Oppedisano's shield number is 15457, the number listed for the officer at § 87(2)(b)'s bedside on the § 87(2)(b) medical records. According to his MOS photo, PO Oppedisano is a § 87(2)(b)-old white male, 5'9" tall, 195 pounds with brown hair and blue eyes, not a

close match for § 87(2)(b)'s description of the subject officer (**58 Board Review**). According to his MOS photo, PO Madocks is a § 87(2)(b)-old white male, 5'11" tall, 190 pounds, with brown hair, brown eyes, and a full beard and moustache, a close match for § 87(2)(b)'s description of the subject officer (**59 Board Review**).

§ 87(2)(g)

PO Madocks testified that he did not recall if he and PO Oppedisano entered the hospital together with § 87(2)(b) or if PO Oppedisano entered a few minutes later because he had to park (**48 Board Review**). However, with the possible exception of those few minutes, PO Oppedisano was with PO Madocks the whole time that he was in the hospital. PO Madocks did not recall anything about the room § 87(2)(b) was placed in and did not recall having any specific safety concerns about § 87(2)(b). PO Madocks was never alone with § 87(2)(b) while at the hospital and did not recall leaving PO Oppedisano alone with her. PO Madocks did not recall if any doctors or nurses performed any exams or procedures on § 87(2)(b). He testified that he was not in the room when § 87(2)(b) received treatment since that is not usually allowed. Protocol for officers accompanying arrestees to the hospital is that when doctors or nurses perform procedures, officers stand nearby but outside the curtains or door so that they give the arrestee the needed privacy but can respond quickly if the arrestee becomes violent. PO Madocks did not recall if this occurred while he was with § 87(2)(b) at the hospital and did not recall any medical staff undressing § 87(2)(b) to insert a catheter. Neither he nor PO Oppedisano was in the room during such a procedure. PO Madocks did not specifically recall any medical staff informing him that they would be doing this. He did not look inside the door or curtain while § 87(2)(b) was being undressed and did not recall § 87(2)(b) being changed into a gown.

PO Oppedisano testified that when he arrived at the hospital, he parked the police vehicle and then entered the hospital building (**47 Board Review**). § 87(2)(b) was lying in bed while PO Madocks stood or sat facing her bed. PO Madocks had been the only officer with § 87(2)(b) for five minutes or less. The hospital room was a large one with numerous beds lining the walls and curtains between each bed. PO Oppedisano joined PO Madocks near the chairs, which were several feet away from the foot of § 87(2)(b)'s bed. PO Oppedisano did not recall if hospital staff dressed § 87(2)(b) in a gown or other medical garb. From when PO Oppedisano arrived until he and PO Madocks were relieved by other officers, they both stayed with § 87(2)(b) although one or the other may have left for short periods of time to go to the restroom. At times, the curtains around § 87(2)(b)'s bed were open and at times they were closed. When the curtains were closed, PO Oppedisano and PO Madocks remained outside the curtains and were unable to see in. Officers are not allowed to leave a prisoner unaccompanied in a hospital. However, a doctor or nurse may tell the officers they need privacy and then the officers remain outside the curtain or door. Typically, if medical staff wanted to undress the prisoner, officers would leave the room. PO Oppedisano did not recall doctors or nurses performing any examination or procedure on § 87(2)(b). No medical staff indicated to PO Oppedisano that they needed privacy. He did not recall any nurse inserting a catheter. He was not in the area when a nurse undressed § 87(2)(b). Since he and PO Madocks were outside the curtained area, a nurse could close the curtains if they wanted to do so. PO Oppedisano did not recall a nurse closing the curtain but noted that he did not recall

much about what happened at the hospital.

§ 87(2)(g)

It is therefore recommended that **Allegation T** be closed as **unsubstantiated**.

§ 87(4-b) § 87(2)

(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four additional CCRB complaints and has been named as a victim in 14 additional allegations (**63 Board Review**).

- § 87(2)(b)

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- § 87(2)(b) has been party to three additional CCRB complaints and has been named as victim in 21 additional allegations (**64 Board Review**).

- § 87(2)(b)

§ 87(2)(b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

- Capt. Giambrone has been a member of service for 23 years and has been a subject in four additional CCRB complaints and seven additional allegations, none of which were substantiated. § 87(2)(g)

- Sgt. Hansen has been a member of service for 15 years and has been a subject in 14 additional CCRB complaints and 33 additional allegations, of which three were substantiated:
 - 201310255 involved substantiated allegations of a stop, frisk, and search against Sgt. Hansen. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.

§ 87(2)(g)

[REDACTED]

- Sgt. Massa was a member of service for 28 years and a subject in eight additional CCRB complaints and 25 additional allegations, two of which were substantiated:
 - 201304504 involved substantiated allegations of a vehicle stop and vehicle search. The Board recommended instructions and the NYPD imposed instructions.

§ 87(2)(g)

[REDACTED]

- PO Ajesulas has been a member of service for 15 years and has been a subject in five additional CCRB complaints and 10 additional allegations, none of which were substantiated.

§ 87(2)(g)

[REDACTED]

- PO Loccisano has been a member of service for six years and has been a subject in three additional CCRB complaints and seven additional allegations, none of which were substantiated. § 87(2)(g)

- PO Madocks has been a member of service for nine years and this is the first CCRB complaint to which he has been a subject.
- PO Singh has been a member of service for six years and has been a subject in three additional CCRB complaints and four additional allegations, none of which were substantiated. § 87(2)(g)

- This is the first CCRB complaint to which PO Zeplin has been a subject. CTS does not provide the number of years for which PO Zeplin was a member of service.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On March 2, 2022, the New York City Office of the Comptroller confirmed that neither § 87(2)(b) nor § 87(2)(b) filed a Notice of Claim in regards to this complaint (65 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

Squad: 1

Investigator:	<u>Rachel Adler</u>	<u>Investigator Rachel Adler</u>	<u>3/14/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Mgr. Joy Almeyda</u>	<u></u>	<u>3.14.22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date